

ATTACHMENT A

CONTRACT NO. _____

Approved as to
form only:

Date: 5/23/18

MEMORANDUM OF UNDERSTANDING
BETWEEN THE CITY OF CHEYENNE,
LARAMIE COUNTY SCHOOL DISTRICT NUMBER ONE, AND
CHEYENNE FRONTIER DAYS, INC.

1. **Parties.** This Memorandum of Understanding ("MOU") is made and entered into by and between the City of Cheyenne, a municipality organized and existing under the laws of the State of Wyoming ("City"), whose address is 2101 O'Neil Avenue, Cheyenne, Wyoming 82001, Laramie County School District Number One ("District"), whose address is 2810 House Avenue, Cheyenne, Wyoming 82001, and Cheyenne Frontier Days, Inc., a Wyoming corporation ("CFD"), whose address is P.O. Box 2477, Cheyenne, Wyoming 82003.

2. **Purpose.** The purpose of this MOU is to provide a means for the City to provide enhanced public transportation services during the 2018 Cheyenne Frontier Days celebration by leasing school buses from the District for use by the District's drivers under contract with CFD.

3. **Term of MOU.** This MOU shall, when approved and executed by the parties hereto, remain in full force and effect through July 30, 2018. The payment and indemnification provisions of this MOU shall survive the termination hereof.

4. **Payment.** Upon receipt of an itemized invoice from the District, the City agrees to pay the District for the costs of operation of the buses for the duration of this MOU. Such costs shall include, but not necessarily be limited to, fuel, depreciation and maintenance. In no event will the total paid by the City to the District under this MOU exceed the total cost of fuel, depreciation and maintenance incurred by the District in leasing buses pursuant to this MOU. CFD shall reimburse the City for these expenses in accordance with a separate agreement between the City and CFD.

5. **Responsibilities of District.**

A. The District shall furnish the following:

i. Twenty-five (25) buses, each with a minimum capacity of seventy-two (72) passengers, three (3) wheelchair accessible buses, three (3) suburbans, and one (1) trailer, from July 19, 2018 through July 30, 2018, in support of CFD "Park and Ride" program. From these buses, a specific type and number of buses will also be used for the following activities:

a. Four (4) buses, each with a minimum capacity of seventy-two (72) passengers, for the "Cowboy Triangle" from July 19, 2018 through July 30, 2018; and

b. Four (4) buses, each with a minimum capacity of seventy-two (72) passengers, and one (1) wheelchair accessible bus, for the Governor's Art Auction on Thursday, July 19, 2018; and

c. Two (2) wheelchair accessible buses for the Fort D.A. Russell Days from July 20, 2018 through July 22, 2018; and

d. Seven (7) buses, each with a minimum capacity of seventy-two (72) passengers, for the Thunderbird Airshow on Wednesday, July 25, 2018.

ii. Four (4) buses, Type A (shorter buses) from July 19, 2018 through July 30, 2018, for the Volunteer Shuttle Operation from Central High School to Frontier Park.

B. The number of buses listed above represent the maximum number of buses to be in operation at any one time.

6. **Qualifications of Drivers.** For the term of this MOU, the District shall ensure that the buses leased under this MOU are driven by qualified District personnel who possess valid commercial driver's licenses for the type of vehicle operated, and who will act as temporary employees of CFD during the term of and for all purposes associated with this MOU.

7. **Special Provisions.**

A. CFD will provide property, casualty and liability insurance coverage for the buses to be leased by the District to the City and CFD and for all drivers designated by the District to operate said buses for the purposes stated in this MOU, and to name the City and the District as additional insureds and loss payees on all property, casualty and liability insurance policies to be provided by CFD pursuant to a separate contract with the City.

B. It is expressly agreed and understood that insurance coverages provided by CFD pursuant to this Section shall be primary and not contributory.

C. It is expressly agreed and understood that CFD and the City will fully release, indemnify and hold harmless the District and its officers, agents, employees, successors and assigns from any and all causes of action, claims, liabilities, demands or expenses arising out of the use of the District school buses under this MOU.

8. **General Provisions.**

A. **Amendments.** Any party may request changes in this MOU. Any changes, modifications, revisions or amendments to this MOU which are mutually agreed upon by and between parties to this MOU shall be incorporated by written instrument, executed and signed by all parties to this MOU.

B. **Applicable Law.** The construction, interpretation and enforcement of this MOU shall be governed by the laws of the State of Wyoming. The courts of the State of Wyoming shall have jurisdiction over any action arising out this MOU and over the parties, and the venue shall be the First Judicial District Court, Laramie County, Wyoming.

C. Assignments. This MOU shall be binding upon and inure to the benefit of the parties hereto and their respective heirs, successors, transferees, and permitted assignees. No party shall have the right to assign any rights or obligations under this MOU without the express written consent of all of the other parties.

D. Availability of Funds. The payment obligations of the City and the District are conditioned upon the availability of government funds, which are appropriated or allocated for the payment of this obligation. If funds are not allocated and available for the continuance of the services performed by either party, the City or the District may terminate the MOU at the end of the period for which the funds are available. The City and the District shall notify the other parties to this MOU at the earliest possible time of the services which will or may be affected by a shortage of funds. No penalty shall accrue to the City or the District in the event this provision is exercised, and neither the District nor the City shall be subjected to liability for any damages, costs, or expenses claimed to have been incurred as a result of termination under this Section.

E. Entirety of Agreement. This MOU, consisting of four (4) pages, represents the entire and integrated agreement between the parties and supersedes all prior negotiations, representations and agreements, whether written or oral.

F. Force Majeure. No party shall be liable to perform under the MOU if such failure arises out of causes beyond control and without the fault or negligence of said party. Such causes may include, but are not limited to, Acts of God or the public enemy, fires, floods, epidemics, quarantine restrictions, freight embargoes, and unusually severe weather.

G. Notices. All notices arising out of or from the provisions of this MOU shall be in writing and given to the parties either by regular mail or delivery in person at the addresses indicated above.

H. Sovereign/Governmental Immunity. The City of Cheyenne and Laramie County School District Number One, do not waive governmental immunity by entering into this MOU, and each fully retains all immunities and defenses provided by law with respect to any action based on or occurring as a result of this MOU.

I. Third Party Beneficiary Rights. The parties do not intend to create in any other individual or entity the status of third party beneficiary, and this MOU shall not be construed so as to create such status. The rights, duties and obligations contained in this MOU shall operate only between the parties to this MOU, and shall inure solely to the benefit of the parties to this MOU. The provisions of this MOU are intended only to assist the parties in determining and performing their obligations under this MOU. The parties to this MOU intend and expressly agree that only parties signatory to this MOU shall have any legal or equitable right to seek to enforce this MOU, to seek any remedy arising out of a party's performance or failure to perform any term or condition of this MOU, or to bring an action for the breach of this MOU.

9. **Signatures.** In witness whereof, the parties to this MOU through their duly authorized representatives have executed this MOU on the days and dates set out below, and certify that they have read, understood, and agreed to the terms and conditions of this MOU as set forth herein.

The effective date of this MOU shall be the date of the last signature affixed to this page.

CITY OF CHEYENNE

Date
(SEAL)

Marian J. Orr, Mayor

Attest:

Carol Intlekofer, City Clerk

LARAMIE COUNTY SCHOOL
DISTRICT NUMBER ONE

Date

Chairman, Board of Trustees

CHEYENNE FRONTIER DAYS, INC.

Date

By its CEO